

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KIRT JORGENSEN,

Petitioner

VS.

ELIZABETH POUSO-JORGENSEN,

Respondent

) Case Number: FDI-22-796458

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER RE ATTORNEY FEES AND COSTS, SALE OF SF RESIDENCE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kirt Jorgenson and Respondent Elizabeth Pouso-Jorgenson.
- 2) On 5/13/22, Petitioner filed a Petitioner for Dissolution indicating the date of marriage is 6/26/99 and date of separation is 1/28/22 for a marriage of 22 years and 6 months.
- 3) On 11/14/23, the Court entered Status Only Judgment.
- 4) On 7/14/26, Petitioner filed a Request for Order seeking to compel the sale of the marital residence located at 1926 Pine Street, San Francisco, CA pursuant to Family Code section 2108 and \$5,000 in Family Code section 271 attorney's fees and costs. Petitioner asserts he has paid all carrying costs on the residence (approximately \$9,000 monthly) since separation, which he can no longer afford because he lost his job in March of 2025 Petitioner alleges that Respondent previously agreed to the sale of the home and then refused. Petitioner states the marital residence is at risk of foreclosure and claims the parties' have approximately \$2.4M in equity. Petitioner believes that Respondent can neither afford to buy out Petitioner's interest in the marital residence nor sustain the monthly carrying costs on her income. Petitioner filed a Memorandum

of Points and Authorities and declaration of counsel in support of his Request for Order (both pleadings are file dated 6/30/26).

5) On 7/15/26, Petitioner filed a Proof of Electronic Service indicating counsel for Respondent was served with Petitioner's Request for Order and supportive pleadings by email on 7/15/26.

6) On 8/5/26, Petitioner filed an Income and Expense Declaration.

7) On 8/5/26, Petitioner filed a Proof of Electronic Service indicating counsel for Respondent was served with Petitioner's Income and Expense Declaration by email on 8/5/26.

8) Respondent did not file a Responsive Declaration.

B. Findings and Order

1) Family Code section 2108 provides the Court's authority "to order the liquidation of community or quasi-community assets to avoid unreasonable market or investment risks" upon a showing of good cause; however, the Court is prohibited from doing so unless "the appropriate declaration of disclosure has been served by the moving party."

2) Petitioner filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (form FL-141) as mandated by Family Code section 2104 on 3/9/23.

Therefore, the Court finds the requirement for the moving party to serve the appropriate disclosures under Family Code Section 2108 has been met.

3) The Court further finds Petitioner made a showing of good cause given his unrefuted assertion that the marital residence is at risk of foreclosure because he can no longer afford to pay the significant carrying costs on the property since losing his job in March of 2025. As such, Petitioner's unopposed request is GRANTED as follows:

4) The Court will provide Respondent with the opportunity to purchase Petitioner's interest in the marital residence. Respondent shall have until 10/8/26 to arrange the financing necessary to purchase Respondent's interest in the marital residence. If she is unable to do so, the property will be sold.

5) If the parties proceed to sale of the marital residence, the following orders shall take effect:

6) Petitioner shall provide Respondent with the name of three proposed real estate agents by 10/8/26. Respondent shall then select a real estate agent from this list by 10/15/26.

- 1 7) Both parties shall fully and timely cooperate with all reasonable and necessary actions required to
2 prepare and list the marital residence for sale, including, but not limited to:
- 3 a. Following all reasonable recommendations of the agent with respect to repairs and
4 readying the marital residence for sale with costs shared equally.
- 5 b. Signing the listing agreement for the marital residence forthwith.
- 6 c. Listing the marital residence for sale at the listing price recommended by the agent.
- 7 8) Respondent shall vacate the marital residence no later than 11/8/26.
- 8 9) The parties may modify any deadlines set forth above through mutual written agreement signed
9 by both parties.
- 10 10) After sale, the net proceeds from the sale of the residence shall be placed in an interest-bearing
11 account in both parties' names after the payment of commissions, fees, taxes, and other closing
12 costs.
- 13 11) The Court reserves jurisdiction to issue additional orders to effectuate the sale of the marital
14 residence and divide the proceeds therefrom.
- 15 12) The Court reserves jurisdiction over Petitioner's request for \$5,000 in Family Code section 271
16 sanctions.
- 17 13) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 18 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).
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